

Letter of Appointment

[date]

To,
[Name of Independent director]

Dear Sir,

Sub.: Appointment as an Independent Director

We are pleased to inform you that your appointment as an Independent, Non-Executive Director of Eternal Limited (the “**Company**”) has been approved by the Members at Extra Ordinary General Meeting held on [●] for a term of [five (5)] consecutive years effective from [●] till [●], unless terminated earlier in accordance with this letter of appointment or applicable law. As an Independent Director you will not be liable to retire by rotation.

This letter of appointment is a contract for service and is not a contract of employment and sets out the terms and conditions governing your appointment as an Independent, Non-Executive Director on the board of directors (“**Board**”) of the Company:

1. As an Independent, Non-Executive Director, you shall bring objectivity and independence to the Board's discussions and assist the Board with your effective leadership in relation to the Company's strategy, performance, and risk management, as well as ensure high standards of financial probity and corporate governance.
2. Your appointment and all the terms as mentioned above shall be governed by the Companies Act, 2013 and Rules made thereunder (“**Act**”), the SEBI (Listing Obligations and Disclosure Requirements) Regulations, 2015 (“**Listing Regulations**”), the articles of association of the Company and Company's policies. You will also have to discharge the general duties as a director of the Company, including the fiduciary duties specified under Section 166 of the Act, the duties specified in Schedule IV (Code for Independent Directors) of the Act and Listing Regulations and any other applicable law(s).
3. Basis your expertise and experience, you would add value to the Company and discharge all your roles, professional conduct, duties and obligations as an Independent Director of the Company with utmost integrity and professionalism. You would need to adhere to the “Code of Conduct for Board of Directors and Senior Management Personnel” and “Code for Independent Directors” in terms of Listing Regulations read with Section 149 and Schedule IV of the Act.
4. Your tenure is subject to meeting the requisite criteria for being an Independent Director. You would continue to provide periodic declaration of your independence, as required under the Act and Listing Regulations. In case you cease to be Independent, please inform the Company immediately. Further, please refrain from any action that could lead to a loss of your independence. In addition, you shall not abuse your position to the detriment of the Company or its stakeholders or for the purpose of gaining direct or indirect personal advantage or advantage for any associated person. Given the criticality of your role, you should not serve on the boards of competing companies.
5. You may have business interests other than those of the Company. We request you to ensure that the Company is kept informed of any changes to your interests so that the Company can ensure compliance with the applicable laws. We further request you to also make regular and timely disclosures of interest to the Company as required under the Act and Listing Regulations.

6. As per the requirements of your role and in compliance with applicable laws, you would be required to carry out the evaluations of the performance of the Board as a whole, Board Committees and the Individual Directors on an annual basis.
7. You shall be paid Sitting Fees of INR 100,000 per meeting for attending the meetings of the Board, Committee(s) thereof and separate meeting(s) of Independent Directors, as may be applicable. TDS, if applicable, shall be deducted on the Sitting Fees as per the applicable tax laws.
8. The Company will reimburse you for your expenses incurred to attend the meetings of the Board and its committees subject to submission of required documentation as per the Company's policy.
9. You shall be paid an annual remuneration of INR 1,00,00,000/- subject to the provisions of Section 197 of the Act and the Articles of Association of the Company, as fixed by the Board from time to time. Payment of remuneration shall be made half yearly.
10. The Sitting Fee and Annual Remuneration shall be exclusive of applicable GST.
11. All payments to be made to you for your services as the Independent Director, shall be subject to deduction of tax (including, but not limited to, tax deducted at source, in accordance with the provisions of the Income Tax Act, 1961) and any other statutory deductions. You shall be responsible for payment of any taxes over and above the tax required to be deducted at source.
12. The Company provides Directors & Officer (D&O) liability insurance which covers all its Directors and Officers. The D&O liability insurance will be extended to cover you throughout your term of appointment.
13. All information acquired by you during your tenure of directorship is confidential and should not be disclosed, either during your tenure or following termination (by whatever means), to third parties without prior consent from the Company, unless required by law or by the rules of any stock exchange or regulatory body. In the latter case, you would need to suitably inform the Company of such an event or disclosure. You are requested to direct any media queries or approaches to the Company. On reasonable request, you shall return any documents and other materials made available to you by the Company.
14. You being a Designated Person are required to comply with the SEBI (Prohibition of Insider Trading) Regulations, 2015 and the Company's Code for Prevention of Insider Trading, which inter-alia requires that price-sensitive information is not used or transmitted and maintained securely. You should not make any statements that might risk a breach of these requirements without prior clearance from the Company.
15. In the event you propose to resign as an Independent Director of the Company, please provide a notice with detailed reasons and a confirmation that there are no such material reasons other than those provided in the notice.

ETERNAL LIMITED (Formerly known as Zomato Limited)

Registered Address: Ground Floor 12A, 94 Meghdoot, Nehru Place, New Delhi - 110019, India

CIN: L93030DL2010PLC198141, **Telephone Number:** 011 - 40592373

16. Notwithstanding anything contained in this letter of appointment, your appointment will cease immediately in case you incur any disqualification under Section 164 of the Act or your office is vacated by virtue of Section 167 of the Act, or if you are debarred or disqualified by SEBI or any other regulatory authority from holding the office of director. In such an event, you agree to immediately notify the Company of such disqualification /debarment / vacation of office and you shall cease to be a director of the Company with effect from the date of such disqualification, debarment or reason for vacation of office.
17. Upon cessation of your engagement with the Company:
 - i. you shall cease to hold the position of the independent, non-executive director of the Company;
 - ii. subject to applicable law, the Company shall make all payments due to you, including all applicable statutory and contractual payments (including outstanding reimbursements), and such payments (less any set-off against the remuneration payable to you) shall be deemed to be a discharge of all liabilities and obligations of the Company towards you and you shall not be entitled to claim any further amounts from the Company;
 - iii. the Company and you shall make all requisite filings with the concerned regulatory authorities in connection with the same within the prescribed time periods;
 - iv. you shall deliver all papers, documents and other property of the Company, its subsidiaries or affiliates as may be in your possession, custody, control or power, including but not limited to any phones, computers, vehicles, credit cards, etc. provided by the Company, to the person identified by the Company.
18. This letter of appointment and any non-contractual obligations arising out of or in connection with this letter of appointment are governed by and shall be construed in accordance with the laws of India. In the event a dispute or claim arises out of or in relation to or in connection with the existence, validity, interpretation, implementation, termination, enforceability, breach or alleged breach of this letter of appointment ("**Dispute**"), the Company and Director shall attempt in the first instance to resolve such dispute amicably through negotiations between themselves. If the Dispute is not resolved through negotiations within fifteen (15) days of commencement of discussion on the Dispute, then either the Company or the Director may by notice in writing to the other, refer the Dispute to arbitration under the Arbitration & Conciliation Act, 1996 ("**Arbitration**"). The venue of Arbitration will be in New Delhi and the language of Arbitration will be English. The Arbitration proceeding shall be presided by a sole arbitrator mutually appointed by both the Director and the Company. Subject to the above, the Company and the Director irrevocably agree that the courts of New Delhi shall have exclusive jurisdiction to try any dispute or claim that arises out of or in connection with this Agreement or its subject matter or formation (including non-contractual disputes or claims).
19. Representations and Warranties:
 - i. You represent and warrant that as on the date of this letter of appointment:
 - a. the execution, delivery and performance of this letter of appointment by you does not and will not conflict with, breach, violate or cause a default under any contract, agreement, instrument, order, judgment or decree to which you are a party or by which you are bound and that this letter of appointment constitutes a valid and legally binding agreement with respect to the subject matter contained herein;
 - b. you have a valid director's identification number as prescribed under applicable law; and
 - c. you are not disqualified from being appointed as a director on the Board of the Company under the Act and Listing Regulations.

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- ii. the Company represents and warrants that as on the date of this letter of appointment, the execution, delivery and performance of this letter of appointment by the Company does not and will not conflict with, breach, violate or cause a default under any contract, agreement, instrument, order, judgment or decree to which the Company is a party or by which the Company is bound and that this letter of appointment constitutes a valid and legally binding agreement with respect to the subject matter contained herein.
20. In the event of any claim or litigation against the Company, based upon any alleged conduct, act or omission on your part during your term as a director of the Company, you agree to render assistance and cooperation to the Company and provide such information and documents as are necessary and requested by the Company or its counsel.
21. All notices or other communications required or permitted to be delivered or given hereunder shall be in writing and shall be delivered by hand or sent by registered post / acknowledgement due, or express mail, or internationally recognized courier service or transmitted by email. Any notice so served shall be deemed to have been duly given (i) in case of delivery by hand, the other party providing acknowledgment of the receipt; or (ii) when delivered by post or courier and has obtained acknowledgment of the delivery; or (iii) for electronic mail notification with return receipt requested, upon the obtaining of a valid return receipt from the recipient:

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22. Subject to applicable law, the Board has requisite powers and authority to update and amend the above terms & conditions from time to time and such update/amendment will be informed to you in advance.

If the terms of this letter of appointment are acceptable to you, please confirm your acceptance by signing and returning the enclosed copy of this letter of appointment to the Company. The terms of this letter shall be disclosed on the website of the Company.

We are delighted to welcome you to our Board of Directors.

For and on behalf of Eternal Limited (Formerly known as Zomato Limited)

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Acceptance:

I have read and understood the terms as set out in this letter of appointment and accept the same.

Name: [•]

Date: [•] Location:

[•]